

The Bihar Additional Commissioners (Appointment and Regulation of Functions) Act, 1949

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State of Bihar - Act

The Bihar Additional Commissioners (Appointment and Regulation of Functions) Act, 1949

BIHAR

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The Bihar Additional Commissioners (Appointment and Regulation of Functions) Act, 1949

Act 3 of 1949

Published on 12 March 1949

Commenced on 12 March 1949

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The Bihar Additional Commissioners (Appointment and Regulation of Functions) Act, 1949

Bihar Act

3 of 1949

[Dated 12th March, 1949]

The assent of Governor published in the Bihar Gazette (Extraordinary) dated 12th March, 1949. For 'Statement of Objects and Reasons' see Bihar Gazette, 1949, Part 5, page 19.

An Act to provide for the appointment of Additional Commissioners in the Province of Bihar and to regulate their functions.

Whereas it is expedient to provide for the appointment of Additional Commissioners in the Province of Bihar and to

regulate their functions;

It is hereby enacted as follows :-

1.

Short title, extent and commencement.

(1)

This Act may be called the Bihar Additional Commissioners (Appointment and Regulation of Functions) Act, 1949.

(2)

It extends to the whole of the [State]

[Substituted by Adaptation of Laws Order.]

of Bihar.

(3)

It shall come into force at once.

2.

Definition.

- In this Act, unless there is anything repugnant in the subject or context, the term "Additional Commissioner" means the Additional Commissioners of one or more divisions appointed under Section 3.

3.

Appointment and regulation of functions of Additional Commissioner.

- Notwithstanding anything contained in any law for the time being in force, the [State]

[Substituted by Adaptation of Laws Order.]

Government may, by notification, appoint any person to be an Additional Commissioner of one or more divisions, and may from time to time, by like notification, empower such Additional Commissioner to exercise and perform all or any of the powers and duties conferred and imposed upon a Commissioner by or under any enactment for the time being in force or by or under any rules, orders, bye-laws or notifications made or issued thereunder.

4.

General powers of transfer and withdrawal.

(1)

A Commissioner may transfer any case, appeal or other proceeding pending before him for trial or disposal to Additional Commissioners of his Division.

(2)

Such Commissioner may withdraw any case, appeal or other proceeding from, or recall any case, appeal or other proceeding which he has transferred to any Additional Commissioner.

5.

Repeal and saving.

(1)

The Bihar Additional Commissioners (Appointment and Regulation of Functions) Ordinance, 1949, is hereby repealed.

(2)

All proceedings commenced, persons appointed, all jurisdictions and powers conferred, notifications issued and orders made under any of the provisions of the said Ordinance shall be continued and be deemed to have been respectively commenced, appointed, conferred, issued and made under the corresponding provisions of this Act, as if this Act had commenced on the 26th January, 1949.

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